



CHAPTER 42.

An Act to amend the law as to the delegation of royal functions to Counsellors of State.

[11th November 1943.]

WHEREAS Your Majesty, by Your Majesty's Royal Message to both Houses of Parliament, has recommended that Parliament should review the provision made for the delegation of royal functions to Counsellors of State in the event of the Sovereign's illness or absence or intended absence from the United Kingdom, and should consider whether it be not expedient to make provision for including among such Counsellors the person who is the heir apparent or heir presumptive to the Throne if that person, although not of full age, is of such age that his accession would not necessitate a Regency:

And whereas Your Majesty in the same Message has recommended that Parliament should also consider whether it be not expedient to make provision for enabling persons who are absent or intend to be absent from the United Kingdom to be excepted from among the number of Counsellors of State:

Now, therefore, we, Your Majesty's Most Dutiful and Loyal Subjects, the Lords Spiritual and Temporal and the Commons in Parliament assembled do most humbly beseech Your Majesty that it be enacted, and be it enacted by the King's Most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. For subsection (2) of section six of the Regency Act 1937, (which makes provision as to the persons who are to be the Counsellors of State to whom royal functions may be

as to 1 Edw. 8
& 1 Geo. 6.
c. 16. s. 6

delegated in accordance with the provisions of that section) there shall be substituted the following subsections:—

“(2) Subject as hereinafter provided, the Counsellors of State shall be the wife or husband of the Sovereign (if the Sovereign is married), and the four persons who, excluding any persons disqualified under this section, are next in the line of succession to the Crown, or if the number of such persons next in the line of succession is less than four, then all such persons:

Provided that, if it appears to the Sovereign that any person who, in accordance with the foregoing provisions of this subsection, would be required to be included among the Counsellors of State to whom royal functions are to be delegated, is absent from the United Kingdom or intends to be so absent during the whole or any part of the period of such delegation, the Letters Patent may make provision for excepting that person from among the number of Counsellors of State during the period of such absence.

(2A) The heir apparent or heir presumptive to the Throne if not under the age of eighteen years shall not be disqualified from being a Counsellor of State by reason only of his not being of full age, but save as aforesaid any person disqualified under this Act from being Regent shall be disqualified from being a Counsellor of State.”

Short title and citation.

2. This Act may be cited as the Regency Act 1943, and this Act and the Regency Act 1937 may be cited together as the Regency Acts 1937 and 1943.

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